Date: / / (YYYY / MM / DD)

**ScienceX Inc. (サイエンスエックス株式会社)**
Shinya Nakashima, Representative Director

# Confidentiality Undertaking

*This English text is a reference translation. In the event of any discrepancy, the Japanese version shall prevail.*

The undersigned company (the "Recipient") hereby undertakes as follows in connection with the disclosure by ScienceX Inc. (サイエンスエックス株式会社; the "Discloser") of project information relating to battery energy storage system (BESS) power plants and other renewable-energy-related businesses.

**Article 1 (The Project and Confidential Information)** 1. In this Undertaking, the "Project" means the evaluation and execution of any acquisition, transfer, sale and purchase, brokerage, joint venture or other transaction concerning a BESS power plant or other renewable-energy-related project introduced by the Discloser to the Recipient.

2. "Confidential Information" means all information disclosed or provided by the Discloser to the Recipient in connection with the Project, in writing, orally, in electronic form or by any other method or medium, including the location, lot numbers and drawings of a project; equipment specifications; grid-connection study responses and the amount of construction cost contributions; prices and other transaction terms; the names and contact details of sellers, landowners, developers and other related parties; business plans and financial calculations; contracts; and due diligence materials. It is Confidential Information whether or not marked as confidential.

3. The fact that the Recipient has been introduced to the Project by the Discloser, and the fact that discussions concerning the Project are taking place, are also Confidential Information.

**Article 2 (Exclusions)** Notwithstanding the preceding Article, information that the Recipient can demonstrate in writing falls under any of the following is not Confidential Information:

(1) information that was already publicly known at the time of disclosure;

(2) information that became publicly known after disclosure through no fault of the Recipient;

(3) information that the Recipient already lawfully held at the time of disclosure;

(4) information lawfully obtained from a third party having the right to disclose it, without any duty of confidentiality; and

(5) information independently developed or obtained by the Recipient without use of the Confidential Information.

**Article 3 (Confidentiality)** 1. The Recipient shall keep the Confidential Information strictly confidential and shall not disclose, provide or leak it to any third party without the prior written consent of the Discloser (including by e-mail; the same applies below).

2. Notwithstanding the preceding paragraph, the Recipient may disclose the Confidential Information, only to the extent reasonably necessary for evaluating the Project, to its own officers and employees and to professionals who owe a statutory duty of confidentiality, such as attorneys, certified public accountants and tax accountants. In that case the Recipient shall cause each such recipient to comply with obligations equivalent to this Undertaking and shall be fully responsible for their acts as its own.

3. If the Recipient needs to disclose the Confidential Information to its own clients, investors or other third parties in connection with the Project, it shall obtain the Discloser's prior written consent and obtain from each such third party a written undertaking of confidentiality equivalent to this Undertaking.

4. If disclosure is required by a government agency or other authority under laws or regulations or the rules of a financial instruments exchange, the Recipient may disclose the Confidential Information to the minimum extent necessary, after notifying the Discloser in advance to the extent practicable.

**Article 4 (No Use for Other Purposes)** The Recipient shall use the Confidential Information solely for the purpose of evaluating and executing the Project and for no other purpose.

**Article 5 (No Direct Contact; No Circumvention)** 1. Without the Discloser's prior written consent, the Recipient shall not, directly or through any third party, contact, inquire of, negotiate with or propose a transaction to any seller, landowner, developer, grid-connection applicant, general transmission and distribution operator or other related party of which it becomes aware through the Confidential Information, in relation to the Project.

2. The Recipient shall not, itself or through its affiliates or clients, enter into any transaction concerning the Project or any substantially identical project without involving the Discloser.

3. If the Recipient breaches the preceding two paragraphs and a transaction is concluded without involving the Discloser, the Recipient shall pay the Discloser an amount equivalent to the fee the Discloser would have earned had the Project been concluded.

**Article 6 (Copying and Management)** 1. The Recipient shall not copy the Confidential Information beyond what is necessary for evaluating the Project.

2. The Recipient shall manage the Confidential Information with the due care of a prudent manager and take the measures necessary to prevent leakage, loss and damage.

**Article 7 (Return and Destruction)** If the Recipient discontinues its evaluation of the Project, or if requested by the Discloser, the Recipient shall without delay return or destroy, as instructed by the Discloser, all materials containing the Confidential Information (including copies), and shall erase electronic records by an irrecoverable method.

**Article 8 (No Grant of Rights; No Warranty)** 1. Disclosure of the Confidential Information does not grant or transfer to the Recipient any right in the Confidential Information.

2. The Discloser does not warrant the accuracy, completeness or usefulness of the Confidential Information and is not responsible for any decision or measure taken by the Recipient on the basis of it.

3. This Undertaking does not oblige either the Discloser or the Recipient to conclude any transaction concerning the Project.

**Article 9 (Term)** The obligations under this Undertaking continue for three (3) years from the date of submission of this Undertaking. If the Discloser and the Recipient separately agree on confidentiality in relation to the Project, that agreement shall prevail.

**Article 10 (Exclusion of Anti-Social Forces)** The Recipient represents and warrants that neither the Recipient nor its officers are, or will in the future become, an organized crime group, a member or associate member of one, a company affiliated with one, a corporate racketeer or any other anti-social force equivalent to the foregoing.

**Article 11 (Injunction and Damages)** If the Recipient breaches or is likely to breach this Undertaking, the Discloser may seek an injunction against the breaching act. The Recipient shall compensate the Discloser for any damage caused by a breach of this Undertaking.

**Article 12 (Governing Law and Jurisdiction)** This Undertaking is governed by the laws of Japan, and the Tokyo District Court shall have exclusive jurisdiction in the first instance over any dispute relating to this Undertaking.

End

(Undertaking party)

Address: _____

Company name: _____

Title of representative: _____

Name of representative: _____ (signature / seal)